

Commission of Omission

Court rulings and counter petitions by the state Government have resulted in more delays

On March 6, 2002, the Gujarat Government set up a commission of inquiry headed by retired high court judge K.G. Shah to inquire into the Godhra train burning and the subsequent violence, and submit a report in three months. Following criticism from riot victim organisations, activists and political parties over Shah's alleged proximity to BJP, on May 22, the Government reconstituted the commission, appointing retired Supreme Court Justice G.T.

Shah visited the sites of the riot cases across the state to study the details personally. It is probing the following aspects of the riots:

- The causes behind the Godhra carnage.
- The causes behind the post-Godhra riots
- The conduct of the chief minister, ministers, political leaders and other Government officials during the riots.
- Whether the NHRC recommendations were followed by the state Government in the riot cases.
- Whether the compensation given to the riot victims was proper.

It has taken a long time to submit its report because of the sheer workload, which is substantiated by the 4,250 riots cases that were registered in 2002 in the aftermath of the Godhra carnage. If Mukul Sinha, the lawyer fighting for the riot victims before the commission is to be believed, the government counsel have used delaying tactics to ultimately delay the commission's report. But one of the reasons behind the delay in the proceedings of the commission is its terms of reference which enjoin it to examine whether the compensation given to the riot victims was proper.

This has triggered 40,000 applications to the commission from compensation seekers, delaying the proceedings.

Justice Nanavati has till now enjoyed a fairly good reputation as a Supreme Court judge. But former government counsel Pandya's scandalous comments about him in the *Tehelka* sting operation has cast legitimate doubts about his partiality. He now has to prove otherwise.

IN FOCUS: Nanavati is now under pressure
Nanavati to lead the body.

Nanavati's name was recommended by the Supreme Court to head the commission on the Gujarat Government's request. Technically it is known today as the Nanavati-Shah Commission and has examined over 3,100 witnesses so far. Soon after it was set up, Justices Nanavati and

for justice for the Muslim riot victims are trying to save from the clutches of law those accused of killing 59 Hindus at Godhra. The sting operation is a part of the larger plan to defame the Sangh Parivar and weaken the nationalist forces." All in all, the operation has strengthened Modi's image as a hard core Hindutva leader at a time when some Sangh Parivar elements have begun questioning his Hindutva credentials.

Meanwhile, most Muslims in Gujarat are happy that there is more evidence against those who targeted them. Says Zakia Jaffri, the wife of Congress leader Ehsan Jaffri who was butchered during the riots: "An FIR should now be filed

against Modi himself." But there is a section within the community which thinks otherwise. As Juber Khan, a victim of the Naroda Patiya riot, says echoing the sentiments of a large section of riot victims, "Of course we do want punishment for those who perpetrated these crimes on us. But repeated emergence of that gory episode disturbs communal peace and creates insecurity in our minds at a time when life is becoming normal for us. We sincerely want respite from that dark chapter." However, there is little likelihood of that with activists now preparing a national signature campaign to get the legal process moving faster in terms of convictions. ■



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Every such episode renews our hope that justice will be done to the riot victims.

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